

Attachment C
Performance Work Statement
Addendum

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PRIVACY REQUIREMENTS FOR CONTRACTORS AND PERSONNEL

In addition to FAR 52.224-1 Privacy Act Notification (APR 1984), 52.224-2 Privacy Act (APR 1984), 52.224-3 Privacy Training – Alternate I (DEVIATION), and HSAR Clauses, the following instructions must be included in their entirety in all contracts.

Limiting Access to Privacy Act and Other Sensitive Information

In accordance with FAR 52.224-1 Privacy Act Notification (APR 1984), and FAR 52.224-2 Privacy Act (APR 1984), if this contract requires contractor personnel to have access to information protected by the Privacy Act of 1974, the contractor is advised that the relevant DHS system of records notices (SORNs) applicable to this Privacy Act information may be found at <https://www.dhs.gov/system-records-notices-sorns>. Applicable SORNS of other agencies may be accessed through the agencies' websites or by searching GovInfo, available at <https://www.govinfo.gov> that replaced the FDsys website in December 2018. SORNs may be updated at any time.

Prohibition on Performing Work Outside a Government Facility/Network/Equipment

The Contractor shall perform all tasks on authorized Government networks, using Government-furnished IT and other equipment and/or Workplace as a Service (WaaS) if WaaS is authorized by the statement of work. Government information shall remain within the confines of authorized Government networks at all times. Except where telework is specifically authorized within this contract, the Contractor shall perform all tasks described in this document at authorized Government facilities; the Contractor is prohibited from performing these tasks at or removing Government-furnished information to any other facility; and Government information shall remain within the confines of authorized Government facilities at all times. Contractors may only access classified materials on government furnished equipment in authorized government owned facilities regardless of telework authorizations.

Prior Approval Required to Hire Subcontractors

The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (Subcontractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under or relating to this contract. The Contractor (and any Subcontractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information.

Separation Checklist for Contractor Employees

Contractor shall complete a separation checklist before any employee or Subcontractor employee terminates working on the contract. The separation checklist must verify: (1) return of any Government-furnished equipment; (2) return or proper disposal of sensitive personally

identifiable information (PII), in paper or electronic form, in the custody of the employee or Subcontractor employee including the sanitization of data on any computer systems or media as appropriate; and (3) termination of any technological access to the Contractor's facilities or systems that would permit the terminated employee's access to sensitive PII.

In the event of adverse job actions resulting in the dismissal of an employee or Subcontractor employee, the Contractor shall notify the Contracting Officer's Representative (COR) within 24 hours. For normal separations, the Contractor shall submit the checklist on the last day of employment or work on the contract.

As requested, contractors shall assist the ICE Point of Contact (ICE/POC), Contracting Officer, or COR with completing ICE Form 50-005/Contractor Employee Separation Clearance Checklist by returning all Government-furnished property including but not limited to computer equipment, media, credentials and passports, smart cards, mobile devices, PIV cards, calling cards, and keys and terminating access to all user accounts and systems.

Contractor's Commercial License Agreement and Government Electronic Information Rights

Except as stated in the Performance Work Statement and, where applicable, the Contractor's Commercial License Agreement, the Government Agency owns the rights to all electronic information (electronic data, electronic information systems or electronic databases) and all supporting documentation and associated metadata created as part of this contract. All deliverables (including all data and records) under the contract are the property of the U.S. Government and are considered federal records, for which the Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein. The Contractor must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.

Privacy Lead Requirements

If the contract involves an IT system build or substantial development or changes to an IT system that may require privacy documentation, the Contractor shall assign or procure a Privacy Lead, to be listed under the SOW or PWS's required Contractor Personnel section. The Privacy Lead shall be responsible for providing adequate support to DHS to ensure DHS can complete any required PTA, PIA, SORN, or other supporting documentation to support privacy compliance. The Privacy Lead shall work with personnel from the program office, the ICE Privacy Unit, the Office of the Chief Information Officer, and the Records and Data Management Unit to ensure that the privacy documentation is kept on schedule, that the answers to questions in the PIA are thorough and complete, and that questions asked by the ICE Privacy Unit and other offices are answered in a timely fashion.

The Privacy Lead:

- Must have excellent writing skills, the ability to explain technology clearly for a non-technical audience, and the ability to synthesize information from a variety of sources.
- Must have excellent verbal communication and organizational skills.
- Must have experience writing PIAs. Ideally the candidate would have experience writing PIAs for DHS.
- Must be knowledgeable about the Privacy Act of 1974 and the E-Government Act of 2002.
- Must be able to work well with others.

If a Privacy Lead is already in place with the program office and the contract involves IT system builds or substantial changes that may require privacy documentation, the requirement for a separate Private Lead specifically assigned under this contract may be waived provided the Contractor agrees to have the existing Privacy Lead coordinate with and support the ICE Privacy POC to ensure privacy concerns are proactively reviewed and so ICE can complete any required PTA, PIA, SORN, or other supporting documentation to support privacy compliance if required. The Contractor shall work with personnel from the program office, the ICE Office of Information Governance and Privacy, and the Office of the Chief Information Officer to ensure that the privacy documentation is kept on schedule, that the answers to questions in any privacy documents are thorough and complete, that all records management requirements are met, and that questions asked by the ICE Privacy Unit and other offices are answered in a timely fashion.

OCIO/ DATA MANAGEMENT UNIT (DMU) - DATA OWNERSHIP CONTRACT REQUIREMENTS LANGUAGE

1. Accessibility of Government-owned Data

All stored program data associated with this acquisition shall be owned by the Government. As such, it shall be made accessible to the Government in accordance with the Minimum Data Access Capability described below. This accessibility is required to allow full data transparency, flexibility in performing data analytics, and integration with data from other government programs.

In addition to the Minimum Data Access Capability, the Government prefers, but does not require, that program data be accessible via Enhanced Access Capabilities as described below.

Definition of “**program data**”: Program Data refers to any data resulting from ICE and DHS organizational activity. Examples of such data include but are not limited to administrative data resulting from human resource, management, and financial actions, as well as operational data resulting from performance of the ICE mission.

Definition of “**associated with this acquisition**”: Program Data is associated with an acquisition if it is created by DHS organizational activity that is facilitated by the contractor. Examples of how a contractor might facilitate organizational activity follow:

- Program data is stored by contractor personnel
- Program data is stored by software that is managed, developed, or used by the contractor
- Program data is stored in a repository that is managed, developed, or used by the contractor

2. Minimum Data Access Capability

- The current version of all Program Data is accessible to the Government within 24 hours of request, as well as on any pre-defined schedule as required by the Government.

Data access can occur by various means, provided that Government security requirements are met, and data is accessible in a format that is acceptable to the Government. Examples include but are not limited to APIs that are consumable by the Government, files made available for Government download (e.g., Excel Spreadsheets), or direct database query by federal or contractor personnel.

- The contractor shall format program data accessed by the Government to anticipate the maximum file size of any data to be accessed. File size shall be small enough to assure rapid processing by government applications.
- The contractor shall provide the means for the Government to interpret accessible Program Data as follows:
 - Data elements and groupings of data elements shall be clearly identifiable by labels embedded in the data itself, or by a separate schema or file layout which allows such elements and groupings to be identified.
In the case of a relational database schema defined through Data Definition Language (DDL), data elements would be represented as columns, and groupings of data would be represented as tables. In addition, relationships between tables would be described as foreign key relations.
 - Labels or names used to identify data elements and groupings of data elements shall be approved by the Government. In addition, each label or name shall be associated with a government approved definition which describes the content of data held therein.
 - Program data delivered to the Government shall conform to the Government approved definition for each data element and grouping of data elements.
 - All data accessible by the Government shall be both machine readable and human-readable in plain text.
 - All reference data associated with Program Data also needs to be accessible to the Government. Such reference data is required to provide complete understanding of a record.

Reference Data Example: Program data may include a city code which uniquely identifies a city. Reference data associated with a city code may include its name, geographic boundaries, population, median income, etc. This example is provided for clarification of the meaning of reference data and may or may not apply to this specific

acquisition. Examples of other reference data codes would include codes representing eye color, gender, country of origin, etc.

3. Enhanced Access Capabilities

The Government prefers that sharing of program data take place via an Application Programming Interface (API) or multiple APIs. APIs allow the Government to efficiently consume data via a widely recognized standard where the data has been completely abstracted from the technology platform that produces it.

In addition, the Government prefers that sharing of program data take place using techniques that enhance efficiency, such as Change Data Capture (CDC). CDC enhances efficiency of data transfer by providing only incremental updates to program data as opposed to providing all program data each time data is shared.

SECTION 508 LANGUAGE

Section 508 of the Rehabilitation Act (classified to [29 U.S.C. § 794d](#)) requires that when Federal agencies develop, procure, maintain, or use information and communications technology (ICT), it shall be accessible to people with disabilities. Federal employees and members of the public with disabilities must be afforded access to and use of information and data comparable to that of Federal employees and members of the public without disabilities.

All products, platforms and services delivered as part of this work statement that, by definition, are deemed ICT shall conform to the revised regulatory implementation of Section 508 Standards, which are located at 36 C.F.R. § 1194.1 & Appendixes A, C & D, and available at <https://www.ecfr.gov/cgi-bin/text-idx?SID=e1c6735e25593339a9db63534259d8ec&mc=true&node=pt36.3.1194&rgn=div5>. In the revised regulation, ICT replaced the term electronic and information technology (EIT) used in the original 508 standards. ICT includes IT and other equipment.

Exceptions for this work statement have been determined by DHS and only the exceptions described herein may be applied. Any request for additional exceptions shall be sent to the Contracting Officer and a determination will be made according to DHS Directive 139-05, Office of Accessible Systems and Technology, dated November 12, 2018 and DHS Instruction 139-05-001, Managing the Accessible Systems and Technology Program, dated November 20, 2018, or any successor publication.

1.1 Section 508 Requirements for Technology Products

Section 508 applicability to Information and Communications Technology (ICT):
Inmate Recognition and Identification System

Applicable Exception: N/A **Authorization #:** N/A

Applicable Functional Performance Criteria: All functional performance criteria in Chapter 3 apply to when using an alternative design or technology that results substantially equivalent or greater accessibility and usability by individuals with disabilities than would be provided by conformance to one or more of the requirements in Chapters 4 and 5 of the Revised 508 Standards, or when Chapters 4 or 5 do not address one or more functions of ICT.

Applicable 508 requirements for electronic content features and components (including but not limited to Electronic documents; Electronic reports): Does not apply

Applicable 508 requirements for software features and components (including but not limited to Web, desktop, server, mobile client applications; Electronic content and software authoring tools and platforms; Software infrastructure)

Applicable 508 requirements for hardware features and components (including but not limited to Other): All requirements in Chapter 4 apply

Applicable 508 requirements for support services and documentation: All requirements in Chapter 6 apply

1.2 Section 508 Requirements for Technology Products

Section 508 applicability to Information and Communications Technology (ICT): Mobile Offender Recognition and Identification System

Applicable Exception: N/A **Authorization #:** N/A

Applicable Functional Performance Criteria: All functional performance criteria in Chapter 3 apply to when using an alternative design or technology that results substantially equivalent or greater accessibility and usability by individuals with disabilities than would be provided by conformance to one or more of the requirements in Chapters 4 and 5 of the Revised 508 Standards, or when Chapters 4 or 5 do not address one or more functions of ICT.

Applicable 508 requirements for electronic content features and components (including but not limited to Electronic documents; Electronic reports): Does not apply

Applicable 508 requirements for software features and components (including but not limited to Web, desktop, server, mobile client applications; Electronic content and software authoring tools and platforms; Software infrastructure)

Applicable 508 requirements for hardware features and components (including but not limited to Other): All requirements in Chapter 4 apply

Applicable 508 requirements for support services and documentation: All requirements in Chapter 6 apply

1.3 Section 508 Requirements for Technology Services

1. When providing Platform as a Service (PaaS) or Software as a Service (SaaS), the contractor shall ensure services conform to the applicable Section 508 standards (including the requirements in Chapter 5 for software and WCAG Level A and AA Level 2.0 success criteria for web and software. When the requirements in Chapter 5 do not address one or more software functions, the Contractor shall ensure conformance to the Functional Performance Criteria specified in Chapter 3.) The agency reserves the right to request an Accessibility Conformance Report (ACR) for PaaS and SaaS offerings. The ACR should be created using the Voluntary Product Accessibility Template Version 2.2 508 (or later). The template can be located at <https://www.itic.org/policy/accessibility/vpat>
2. When providing cloud hosting services (Infrastructure as a Service, Platform as a Service, Software as a Service, etc.) the Contractor shall ensure user administrative screens, dashboards and portals used to configure, and monitor cloud services conform to the Section 508 standards.
3. The Contractor shall ensure cloud hosting services shall not reduce the level of Section 508 conformance for ICT migrated by DHS to the cloud hosting environment.
4. Contractor personnel shall possess the knowledge, skills and abilities necessary to address the accessibility requirements in this work statement.

1.4 Section 508 Deliverables

1. Section 508 Accessibility Conformance Reports: For each ICT item offered through this contract (including commercially available products, and solutions consisting of ICT that are developed or modified pursuant to this contract), the Offeror shall provide an Accessibility Conformance Report (ACR) to document conformance claims against the applicable Section 508 standards. The ACR shall be based on the Voluntary Product Accessibility Template Version 2.0 508 (or successor versions). The template can be found at <https://www.itic.org/policy/accessibility/vpat>. Each ACR shall be completed by following all of the instructions provided in the template, including an explanation of the validation method used as a basis for the conformance claims in the report.

GENERAL CYBERSECURITY CONTRACT REQUIREMENTS

Supply Chain Risk Management Terms and Conditions

The Contractors supplying the Government hardware and software shall provide the manufacturer's name, address, state and/or domain of registration, and the Data Universal Numbering System (DUNS) number for all components comprising the hardware and software. If subcontractors or subcomponents are used, the name, address, state, and/or domain of registration and DUNS number of those suppliers must also be provided.

Subcontractors are subject to the same general requirements and standards as prime contractors. Contractors employing subcontractors shall perform due diligence to ensure that these standards are met.

The Government shall be notified when a new contractor/subcontractor/service provider is introduced to the supply chain, or when suppliers of parts or subcomponents are changed. Contractors shall provide, implement, and maintain a Supply Chain Risk Management Plan that addresses internal and external practices and controls employed to minimize the risk posed by counterfeits and vulnerabilities in systems, components, and software.

The Plan shall describe the processes and procedures that will be followed to ensure appropriate supply chain protection of information system resources developed, processed, or used under this contract.

The Supply Chain Risk Management Plan shall address the following elements:

- i.* How risks from the supply chain will be identified;
- ii.* What processes and security measures will be adopted to manage these risks to the system or system components; and
- iii.* How the risks and associated security measures will be updated and monitored.

The Supply Chain Risk Management Plan shall remain current through the life of the contract or period of performance. The Supply Chain Risk Management Plan shall be provided to the Contracting Officer Representative (COR/CO) 30 days post award.

The Contractor acknowledges the Government's requirement to assess the Contractor's Supply Chain Risk posture. The Contractor understands and agrees that the Government retains the right to cancel or terminate the contract, if the Government determines that continuing the contract presents a risk to national security.

The Contractor shall disclose, and the Government will consider, relevant industry standard certifications, recognitions and awards, and acknowledgments.

The Contractor shall provide only new equipment unless otherwise expressly approved, in writing, by the CO. Contractors shall provide only Original Equipment Manufacturer (OEM) parts to the Government. In the event that a shipped OEM part fails, all replacement parts must be OEM parts.

The Contractor shall be excused from using new OEM (i.e. "grey market, "previously used) components only with formal Government approval. Such components shall be procured from their original source and have them shipped only from manufacturers authorized shipment points.

For software products, the contractor shall provide all OEM software updates to correct defects for the life of the product (i.e., until the "end of life"). Software updates and patches must be made available to the government for all products procured under this contract.

Contractors shall employ formal and accountable transit, storage, and delivery procedures (i.e., the possession of the component is documented at all times from initial shipping point to final

destination, and every transfer of the component from one custodian to another is fully documented and accountable) for all shipments to fulfill contract obligations with the Government.

All records pertaining to the transit, storage, and delivery will be maintained and available for inspection for the lessor of the term of the contract, the period of performance, or one calendar year from the date the activity occurred.

These records must be readily available for inspection by any agent designated by the U.S. Government as having the authority to examine them.

This transit process shall minimize the number of times en route components undergo a change of custody and make use of tamper-proof or tamper-evident packaging for all shipments. The supplier, at the Government's request, shall be able to provide shipping status at any time during transit.

The Contractor is fully liable for all damage, deterioration, or losses incurred during shipping and handling, unless the damage, deterioration, or loss is due to the Government. The Contractor shall provide a packing slip which shall accompany each container or package with the information identifying the contract number, the order number, a description of the hardware/software enclosed (Manufacturer name, model number, serial number), and the customer point of contact. The contractor shall send a shipping notification to the intended government recipient or contracting officer. This shipping notification shall be sent electronically and will state the contract number, the order number, a description of the hardware/software being ship (manufacturer name, model number, serial number), initial shipper, shipping date and identifying (tracking) number.

Privacy Expectations

Government contractor employees do not have a right, nor should they have an expectation, of privacy while using Government provided devices at any time, including accessing the Internet and using e-mail and voice communications. To the extent that employees wish that their private activities remain private, they should avoid using the Government provided device for limited personal use. By acceptance of the government provided device, employees imply their consent to disclosing and/or monitoring of device usage, including the contents of any files or information maintained or passed -through that device.

6. In accordance with White House Digital Government BYODTK – Mobile Information Technology Device Policy

The following passage should be included in ALL acquisition documents for Mobile devices:

Mobile Information Technology Device Usage

Users who conduct official DHS ICE business on a mobile IT device must:

- a. Sign the Remote Access and Mobile IT Device User Agreement Form.
- b. Operate the device in compliance with this policy, all applicable federal requirements, and the DHS ICE Remote Access and Mobile Information Technology Guide.
- c. Not process or access Classified information on the device.

- d.* Use only approved and authorized DHS ICE owned devices to physically attach to DHS ICE IT systems.
- e.* Store only the minimum amount, if any, of Personally Identifiable Information (PII) and electronic Protected Health Information (ePHI) necessary to do one's work, and immediately delete the PII or ePHI when no longer needed. Users shall receive written approval from their supervisor before accessing, processing, transmitting, or storing DHS ICE Sensitive Information such as PII or ePHI.
- f.* Exercise extra care to preclude the compromise, loss, or theft of the device, especially during travel.
- g.* Immediately contact the DHS ICE Service Desk and their immediate supervisor if the IT device is lost, stolen, damaged, destroyed, compromised, or non-functional.
- h.* Abide by all federal and local laws for using the device while operating a motor vehicle (e.g. users are banned from text messaging while driving federally owned vehicles, and text messaging to conduct DHS ICE business while driving non-government vehicles).

Users who are issued a DHS ICE owned mobile IT device must also:

- a.* Comply with DHS Policy Directive 4300A Attachment Q.
- b.* Not disable or alter security features on the device.
- c.* Only use the DHS ICE owned device for official government use and limited personal use.
- d.* Reimburse the OCIO for any personal charges incurred that are above the established fixed cost for the Agency's use of the device (e.g. roaming charges incurred for personal calls).
- e.* Be required to reimburse DHS ICE if the mobile IT device is lost, stolen, damaged or destroyed as a result of negligence, improper use, or willful action on the employee's part and if determined by ICE.

ICE ARTIFICIAL INTELLIGENCE (AI) CONTRACT LANGUAGE

1. **Compliance with Federal Laws and Policies; AI Use Limitations.** The Contractor shall ensure any AI system or service provided complies with all applicable federal, Department of Homeland Security (DHS), and U.S. Immigration and Customs Enforcement (ICE) AI Policies, Directives, and Memos, as well as ICE AI governance requirements. The AI solution must align with the U.S. Constitution and all relevant laws and regulations, including privacy, civil rights, and civil liberties. Specifically:
 - a.* The Contractor must stay current and comply with any updates or new AI policy and AI governance requirements issued during the contract term.
 - b.* AI used to support law enforcement decisions or civil actions must include technical and operational safeguards to:
 - i.* Establish human-in-the loop oversight.
 - ii.* Document or label AI-generated content.

- c. For AI used in determinations impacting individuals (e.g., risk assessments, identity verification), the Contractor must cooperate with federal, DHS, and ICE procedures for notice and appeal, providing explanations or adjusting outputs upon error findings.
 - d. The contract prohibits use of AI that violates DHS policy, including:
 - i. Using AI outputs as sole evidence for punitive or enforcement actions.
 - ii. Utilizing AI to make or support decisions on improper bases (e.g., predicting future behavior or emotional state leading to discriminatory or unlawful actions).
 - e. The Contractor must follow AI Use Case approval, Security Authorization, and ICE AI governance and AI risk management processes and requirements before developing, piloting, testing, or deploying AI in ICE environments or using ICE data.
 - f. The Contractor is responsible for complying with AI Security Control Baseline requirements.
2. **Traceability, Auditability, and Transparency.** The Contractor shall design, build, document, and operate the AI system or service to be explainable, auditable, and transparent. At a minimum, the Contractor shall:
- a. Document the provenance of data used for AI training, fine-tuning, or operation.
 - b. Ensure data used for AI training, fine tuning, or operation was lawfully obtained and processed.
 - c. Document the provenance of any third-party AI models used (source, version, etc.).
 - d. Provide comprehensive system diagrams and inventories that map the AI systems' API and system connections, data flows, and technical components.
 - e. Provide comprehensive documentation explaining how the AI system works, including any models and algorithms.
 - f. Ensure the AI system, where applicable, provides clear explanations or reasoning for its decisions or predictions.
 - g. Ensure AI outputs are traceable, auditable, meet evidentiary standards, and are explainable to non-technical users. Additionally:
 - i. Ensure GenAI inputs and their outputs are logged and preserved in line with federal, DHS, and ICE retention policies.
3. **Data Rights and Solution Ownership.** The contract shall clearly delineate data and intellectual property rights to protect ICE's interests in the AI solution and associated data. Specifically:
- a. All data provided by the Government or generated through the AI system belongs to the Government. The Contractor is prohibited from:
 - i. Using nonpublic agency data and outputted results to train publicly or commercially available AI algorithms, or any non-ICE systems outside the contract's scope without ICE's authorization.

- ii. Using Government-furnished data or AI-generated data for purposes outside the contract without ICE authorization.
 - iii. Sharing, disclosing, or transferring Government data, AI models, or AI-outputs with third parties without ICE's authorization.
 - b. The Contractor must grant the Government appropriate license rights in any custom-developed AI models, software, or deliverables. Intellectual Property (IP) rights will be negotiated consistent with federal law and the agency's mission needs, aiming to avoid vendor lock-in. The Government may require broad or unlimited rights to certain deliverables (including source code or trained model files) for long-term use, maintenance, or integration of the AI solution.
 - c. ICE maintains ownership over and the Contractor must provide ICE access to:
 - i. Any derivative outputs of AI developed under the Contract, including data processed using AI.
 - ii. Any models trained, fine-tuned, or otherwise developed using ICE data.
- 4. **Prevention Against Vendor Lock-In:** To promote a competitive marketplace and long-term sustainability of ICE's AI capabilities, the Contractor shall:
 - a. Utilize industry-standards, Application Programming Interfaces (APIs), and protocols wherever possible to ensure interoperability and compatibility within and between ICE and DHS systems.
 - b. Ensure inputs and outputs of the AI system are exportable in a non-proprietary, machine-readable format to facilitate integration or transfer of functions to other systems.
 - c. Where custom components are developed, deliver sufficient technical documentation and access to components (including source code, model weights, or other foundational code) to enable ICE's long-term use of the AI system.
 - d. In the case of transitioning the AI system to another contractor or in-house provider, the Contractor must support knowledge transfer and provide all necessary documentation, models, data, derivative outputs, and software to enable sustained system use.
 - i. The Contract must also document estimated costs and related steps that will be required to exit the Contract.
- 5. **Security, Testing & Evaluation, and Continuous Monitoring:** The Contractor shall implement rigorous security and risk management measures for the AI solution, per federal standards, ICE procedures, and Office of Management and Budget (OMB) guidance on AI risks. Key requirements include:
 - a. If designated as a **High Impact AI system**, complying with all required AI Risk Management practices (per OMB, DHS, and ICE policy), unless officially granted a waiver.
 - b. **Before deploying the AI system:** The Contractor must provide testing and evaluation artifacts and support (including providing requisite access) to enable

ICE independent test and evaluation processes to evaluate factors such as, but not limited to:

- i. AI system performance, including accuracy and reliability.
 - ii. Compliance with DHS AI Security Controls.
 - iii. Resiliency against AI cybersecurity and operational threats, including system misuse/abuse.
 - iv. Completion of an AI impact assessment and/or other risk assessment procedures, in line with federal, DHS, and ICE policy and practices.
 - v. Fulfillment of functional, business, and technical requirements.
- c. **While operating the AI system:** The Contractor must re-test system performance, security, resiliency, and abuse/mis-use vulnerabilities before deploying new AI models, fine-tuned models, or other changes to AI systems that require Change Requests.
- d. **Audit and Logging:** Ensure compliance with DHS and ICE **AI auditing and logging requirements**, including, but not limited to audit and logging the access, usage, and modification of:
 - i. AI Guardrails deployed in GenAI systems.
 - ii. Models, including parameters and weights.
 - iii. AI system inputs and outputs (including prompts).
 - iv. Additional requirements as determined by federal, DHS, and ICE policy.
- e. **Continuous Monitoring:** The Contractor shall implement continuous monitoring mechanisms to detect and respond to anomalies, biases, or performance degradation in AI systems. Additionally:
 - i. The Contractor shall establish protocols for the timely remediation of identified issues, including the potential suspension of AI system operations if necessary.
 - ii. The Contractor shall comply with all continuous monitoring requirements, per federal, DHS, and ICE policy.